



Province of Alberta

FAMILY SUPPORT FOR CHILDREN WITH
DISABILITIES ACT

**FAMILY SUPPORT FOR CHILDREN
WITH DISABILITIES REGULATION**

Alberta Regulation 140/2004

With amendments up to and including Alberta Regulation 158/2025

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Alberta King's Printer
Suite 700, Park Plaza
10611 - 98 Avenue
Edmonton, AB T5K 2P7
Phone: 780-427-4952

E-mail: kings-printer@gov.ab.ca
Shop on-line at kings-printer.alberta.ca

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(Consolidated up to 158/2025)

ALBERTA REGULATION 140/2004

Family Support for Children with Disabilities Act

FAMILY SUPPORT FOR CHILDREN WITH DISABILITIES REGULATION

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Definitions

1 In this Regulation,

- (a) repealed AR 315/2006 s2;
- (b) “day care” means day care as defined in Schedule 1 to the *Early Learning and Child Care Regulation* (AR 143/2008);
- (c) “family day home program” means a family day home program as defined in the *Early Learning and Child Care Act*;
- (c.01) “out of school care” means out of school care as defined in Schedule 1 to the *Early Learning and Child Care Regulation* (AR 143/2008);
- (c.1) “parent” includes a person who is standing in place of a parent as described in section 48(1) of the *Family Law Act* or a guardian;
- (d) “prescription drug” means a drug that is on the Alberta Health Drug Benefit List approved by the Minister of Primary and Preventative Health Services;

- (e) “public transport” means public disability transportation, a taxi, a rented car, a train or a commercial bus or plane;
- (f) “relative” means a person who is a child’s parent, grandparent, aunt, uncle, first cousin or sibling.

AR 140/2004 s1;315/2006;170/2012;136/2024;158/2025

Matters to be considered

2 When making a decision under the Act, the director and an appeal committee must consider the following:

- (a) the responsibilities a guardian normally has in raising a child;
- (b) the impact the child’s disability has on the family;
- (c) the strengths and abilities of family members to care for the child;
- (d) the physical and emotional well-being of the guardians and others living in the same home as the child;
- (e) the severity of the child’s disability;
- (f) the child’s developmental stage relevant to age-appropriate functioning;
- (g) the family’s composition;
- (h) the needs of the child’s siblings;
- (i) the cultural values and beliefs of the guardians;
- (j) the needs of the family in caring for the child during scheduled school breaks and school holidays;
- (k) the child’s and family’s involvement in community programs and activities;
- (l) the availability of persons other than the child’s guardians to provide support and assistance in caring for the child;
- (m) the availability and accessibility of appropriate programs, services and other resources within the community where the child lives;
- (n) the geographic location of the child’s home community;
- (o) any other relevant matter.

Service provider restrictions

2.1(1) Subject to subsections (2) and (3), services referred to under section 3 or 4 must be provided by an adult who is not a relative.

(2) An adult relative, except for a parent, may provide respite services under sections 3(h) and 4(1)(a) if that relative, in the opinion of the director, is the most appropriate caregiver.

(3) A person who is 16 or 17 years of age, who is not a relative, may provide the following services:

- (a) respite services under sections 3(h) and 4(1)(a)(i);
- (b) homemaker services under section 4(1)(c);
- (c) child care services for a child 13 years or more under section 4(1)(e)(ii);
- (d) community aide services under section 4(1)(h).

AR 315/2006 s3

Family support services

3 An agreement under section 3 of the Act between the director and a child's guardian may provide for the following family support services:

- (a) up to 20 hours annually of individual and family counselling to assist the family in caring for the child;
- (b) if the child has extraordinary need for clothing and footwear directly related to the child's disability, up to \$400 annually;
- (c) for travel in Alberta to a child's medical or rehabilitation appointments or for hospitalization, directly related to the child's disability,
 - (i) \$0.12 for each kilometre or, if public transport is used, the cost of the most cost-effective and appropriate means of public transport for the child and one adult accompanying the child, and
 - (ii) up to \$10 daily for parking;
- (d) for travel in Alberta to a child's medical or rehabilitation appointments or for hospitalization, directly related to the child's disability, if attending the appointments requires that the child be out of the home for at least 8 hours but not overnight,

- (i) up to \$5 daily for meals for the child and up to \$8 daily for meals for an adult accompanying the child, and
 - (ii) family support services described in clause (c);
- (e) for travel in Alberta to a child's medical or rehabilitation appointments or for hospitalization, directly related to the child's disability, if in the opinion of a director overnight accommodation is required,
- (i) up to \$85 daily for hotel accommodation,
 - (ii) up to \$10 daily for meals for the child unless the child is in hospital or in a facility where accommodation includes meals and up to \$15 daily for meals for an adult accompanying the child or up to \$100 weekly for the purchase of groceries for food preparation for the child and the adult,
 - (iii) if in the opinion of the director a 2nd person must accompany the child, up to \$15 daily for meals for the 2nd person or an additional \$50 weekly for groceries for food preparation for the 2nd person and, if the adult, person and child are using public transport, the cost of the most cost-effective appropriate means of public transport, and
 - (iv) family support services described in clause (c);
- (f) the cost of caring for the siblings of the child if the care is necessary to enable the adult who usually cares for the siblings to accompany the child to medical or rehabilitation appointments or hospitalizations directly related to the child's disability;
- (g) if the child attends medical or rehabilitation appointments or hospitalizations outside Alberta directly related to the child's disability that are funded by the Minister of Primary and Preventative Health Services, family support services described in clauses (e) and (f) may be provided;
- (h) up to 240 hours annually of care for the child, for the purpose of providing temporary respite to the guardian.

AR 140/2004 s3;315/2006;170/2012;163/2022;158/2025

Child-focused services

4(1) An agreement under section 4 of the Act between the director and a child's guardian may provide for the following child-focused services:

- (a) the following respite service based on the child's need for care related to the disability and the guardian's need for respite:
 - (i) short-term hourly care for the child;
 - (ii) if an extended period of respite services are needed, up to 30 24-hour days of care annually for the child;
 - (iii) if more respite services are needed to maintain the guardian's home as the child's primary residence, additional 24-hour days annually of care for the child outside the child's home;
- (b) if respite services are provided under clause (a)(ii) and (iii) and public transport is the only possible means of travel, the cost of the most cost-effective and appropriate means of public transport for the child and one adult to accompany the child to and from the child's home to the place where the respite services are provided;
- (c) in order to assist in completing routine house cleaning and laundry that are impeded by the intensive care needs of the child directly related to the child's disability, up to 12 hours monthly of homemaker services;
- (d) up to 50 hours weekly of care for the child in the home, sibling care and assistance to the family with household daily tasks if in the opinion of the director that because of the child's various complex needs this is the most appropriate and cost-effective way to provide for the child's and family's needs;
- (e) while the guardian is at work, at school or attending training sessions, the following child-focused services:
 - (i) if the child is less than 13 years of age, the portion of child care costs directly related to the child's disability that are over and above the normal costs of child care;
 - (ii) if the child is 13 years of age or more, the costs of child care required because of the child's disability;
 - (iii) the cost of an aide, if required, for the child attending day care or out of school care if the aide is needed because of the child's disability to ensure the safety and supervision of the child and to have the child included in activities;

- (iv) the cost for additional space in a family day home program, if additional space is needed because of the child's disability to ensure the safety and supervision of the child and to have the child included in activities;
- (f) the cost of up to 4 hours for each weekday to a maximum of 20 hours weekly for day care and for an aide to assist the child in the day care, if the child is to attend day care not because the guardian is at work, at school or attending training sessions but because
 - (i) a physician has identified the need for the child to attend day care to enhance the child's development,
 - (ii) the child's program plan satisfactory to the director identifies the need for the child to attend day care,
 - (iii) the child meets eligibility criteria for and is awaiting the commencement of preschool programming from the Department of Education, and
 - (iv) the child requires services and has delays related to at least 2 areas of the child's development;
- (g) up to 4 hours daily for an aide to assist with the child's personal hygiene and other daily personal care activities if
 - (i) the child is dependent on an adult to meet the child's personal hygiene and other daily personal care activities needs, and
 - (ii) the child's ability to meet the child's needs is not appropriate to the age of the child;
- (h) up to 144 hours annually for an aide to assist the child in participating in community programs and activities if the child's disability prevents the child from participating without the assistance of another person;
- (i) up to 10 hours weekly for a maximum of 6 months, or more months if a review, satisfactory to the director, states that more is needed, for an aide
 - (i) to assist the child in behaviour management and to assist the child's guardian to manage the child's behaviour if
 - (A) the child's behaviour is unsafe for the child and others or significantly limits the child's ability to carry out activities of normal daily living,

- (B) the assistance of an aide is likely to achieve measurable improvement in the child's behaviour or sustain a level of behaviour or prevent a regression in the child's behaviour or increased dependency in the child's behaviour and is not for the purpose of assisting the child's educational or academic development, and
 - (C) the proposed assistance of the aide is based on established rehabilitative practices, strategies and approaches that are reasonable, least intrusive and, in the opinion of the director, have been demonstrated to be effective,
- (ii) to assist the child in the child's development and to assist the child's guardian to support the child to reach a developmental goal if
 - (A) the child has a developmental deficiency that significantly limits the child's ability to carry out activities of normal daily living,
 - (B) the assistance of an aide is likely to achieve measurable improvement in the child's development or sustain a level of development or prevent a regression or increased dependency in the child's development and is not for the purpose of assisting the child's educational or academic development, and
 - (C) the proposed assistance of the aide is based on established rehabilitative practices, strategies and approaches that are reasonable, least intrusive and, in the opinion of the director, have been demonstrated to be effective,
- or
- (iii) to assist the child and the child's guardian for reasons referred to in subclauses (i) and (ii);
- (j) the following health-related services if they are directly related to the child's disability:
 - (i) the costs of dental and orthodontic treatment, if the treatment is recommended by the dental review committee established by the director, for the portion of costs exceeding
 - (A) the costs covered by the guardian's dental insurance or benefit plan, or

- (B) \$250 annually if the guardian does not have dental insurance or a benefit plan for dental care;
- (ii) if the guardian has a health services insurance or benefit plan,
 - (A) up to 30% of the cost of prescription drugs or drugs that are approved by the health services insurance or benefit plan, if the plan does not cover 100% of the cost, or
 - (B) the cost to the guardian of an additional health services insurance or benefit plan premium, if the cost of the prescription drugs the guardian would have to pay under paragraph (A) exceeds the cost of the premium of the additional insurance or plan;
- (iii) if a guardian does not have a health services insurance or benefit plan to cover prescription drugs and
 - (A) if the guardian applies for coverage by such insurance or plan, the cost of prescription drugs for the lesser of 4 months or until the insurance or plan takes effect, or
 - (B) if the full cost of the prescription drugs is less than the cost to the guardian to purchase such insurance or plan, the cost of the prescription drugs;
- (iv) the amount by which formula prescribed or ordered by a physician in consultation with a registered dietitian or registered nutritionist or ordered by a registered dietitian or registered nutritionist exceeds the usual cost of formula for a child that age;
- (v) the amount by which food prescribed or ordered by a physician, registered dietitian or registered nutritionist exceeds the usual cost of food for a child that age if the prescribed or ordered food is not vitamins but is part of an accepted, non-experimental nutritional regime to effectively manage an identified condition or dietary need of the child;
- (k) the cost of medical benefits directly related to the child's disability and, if the child has a sibling who is subject to an agreement under this subsection, the child's sibling's disability that is in excess of 2% of the combined net

income of the child's parents, as determined by adding together the amounts reported by each parent on line 23600 of the previous year's income tax return, if, subject to subsection (4),

- (i) the medical benefit is life sustaining or it would be debilitating if the child did not receive the medical benefit,
- (ii) another program or source does not provide the same or similar benefit in whole or in part regardless of whether the child is eligible to receive it,
- (iii) the use of the medical benefit is based on established rehabilitation practices, strategies and approaches that are reasonable and demonstrated to be effective, and
- (iv) the medical benefit is available in Alberta;
- (l) if a child's condition related to the child's disability requires emergency transportation by ambulance and the guardian does not have a health care insurance or benefit plan to cover ambulance services and the guardian applies for coverage under such an insurance or plan, the cost of ambulance services for the lesser of 4 months or until the insurance or plan takes effect;
- (m) if a child has a severe disability resulting in significant limitations and service needs in 2 or more of the following areas:
 - (i) behaviour;
 - (ii) communication and socialization skills;
 - (iii) cognitive abilities;
 - (iv) physical and motor development;
 - (v) self-help skills and adaptive functioning;and if
 - (vi) the level and complexity of the child's needs require an array of integrated and coordinated services, including one or more specialized services,
 - (vii) a multi-disciplinary team has completed an assessment that identifies that the child has a critical need for a specialized service and recommends to the director that a specialized service be provided,

- (viii) an individualized plan, satisfactory to the director, has been developed to coordinate and direct the delivery of services, including a specialized service,
- (ix) the proposed specialized service is likely, in the opinion of a multi-disciplinary team, to achieve measurable improvement in a reasonable and predictable period of time or to sustain or to prevent a regression or dependency in the child's activities of normal daily living,
- (x) the proposed specialized service is based on established rehabilitative practices, strategies and approaches that are reasonable, least intrusive and demonstrated to be effective, and
- (xi) other available programs and services are not appropriate or are insufficient to meet the child's needs,

one or more specialized services for the child and consultation services for the child's guardian with respect to the specialized services, but with respect to areas referred to in subclauses (i) to (v) specialized services may not be provided for the purpose of assisting the child's education or academic development;

- (n) care of the child in a residence other than the guardian's home if the needs of the child cannot be met in the guardian's home;
- (o) if care is provided to a child in a residence under clause (n), the cost of transportation at \$0.12 for each kilometre or if public transport is the only possible means of travel, the cost of the most cost-effective and appropriate means of public transport
 - (i) for the child and one adult to accompany the child to and from the guardian's home to the residence,
 - (ii) for the guardian to visit the child in the residence, and
 - (iii) for the child to visit the guardian in the guardian's home.

(2) In subsection (1)(m),

- (a) "activities of normal daily living" include, but are not limited to, in an age-appropriate manner,

- (i) communication and interaction,
 - (ii) feeding, bathing, dressing and toileting, and
 - (iii) understanding and decision-making;
- (b) “severe disability” means a condition or impairment that
- (i) results in a major loss of the child’s functional ability or capacity to engage in the activities of normal daily living, and
 - (ii) requires the guardian and other caregivers to provide continual and ongoing supervision, assistance and support in the activities of normal daily living to ensure the child’s safety or to facilitate the child’s participation at home and in the community.
- (3) In subsection (1)(k), “medical benefits” means
- (a) a medical supply, or
 - (b) if approved under section 4.1, a drug as prescribed by a physician and as recorded by a pharmacist.
- (4) In subsection (1)(k), a parent’s income is included in the calculation of the aggregate net income where
- (a) the child resides on a consistent or regular basis with the parent, or
 - (b) the child would consistently or regularly reside with the parent if the child’s needs could be met in the parent’s home.

AR 140/2004 s4;105/2005;315/2006;58/2019;
163/2022;136/2024

Extraordinary drug approvals

4.1(1) A director may approve a drug as a medical benefit for the purpose of section 4(1)(k) if

- (a) the drug is not a prescription drug or the drug is a prescription drug that is not indicated in the Alberta Health Drug Benefit List for use in treatment of the child,
- (b) none of the prescription drugs indicated in the Alberta Health Drug Benefit List for use in the treatment of the child were effective to treat the child,

- (c) the drug has already been prescribed by a physician to treat the child and the medical evidence is that it was an effective treatment, and
- (d) the drug is approved under the *Food and Drug Act* (Canada) for sale or distribution in Canada.

(2) A director, in deciding to approve a drug, may take into account a recommendation by the Common Drug Review Committee.

AR 315/2006 s6;170/2012

5 Repealed AR 121/2016 s2.

Services delivery

6(1) Agreements under sections 3 and 4 of the Act may provide for services in the manner that the director considers to be the most cost-effective and appropriate.

(2) Before receiving services pursuant to an agreement under section 3 or 4 of the Act, a guardian must use services on behalf of the child readily available from dental insurance, health services insurance and benefit plans and apply for assistance under other dental insurance, health services insurance and benefit plans and Government and community programs, if in the opinion of the director those programs would be equivalent to the services provided under an agreement under section 3 or 4 of the Act and the child is eligible under those programs.

7 Repealed AR 163/2022 s3.

Expiry

8 For the purpose of ensuring that this Regulation is reviewed for ongoing relevancy and necessity, with the option that it may be repassed in its present or an amended form following a review, this Regulation expires on June 30, 2029.

AR 140/2004 s8;106/2014;58/2019;136/2024

Coming into force

9 This Regulation comes into force on the coming into force of the *Family Support for Children with Disabilities Act*.

Schedule Repealed AR 163/2022 s3.



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